IN THE SUPREME COURT OF THE STATE OF WASHINGTON

STATE OF WASHINGTON,
Appellant,

vs.

GATOR'S CUSTOM GUNS, INC., a Washington for-profit corporation, and WALTER WENTZ, an individual,
Respondents.

No. 102940-3

APPELLANT'S REPLY BRIEF

ROBERT W. FERGUSON,
Attorney General
NOAH G. PURCELL,
WSBA 43492
KRISTIN BENESKI,
WSBA 45478
ANDREW R.W. HUGHES,
WSBA 49515
WILLIAM MCGINTY,
WSBA 41868
R. JULY SIMPSON,
WSBA 45869
BEN CARR, WSBA 40778
BOB HYDE, WSBA 33593
Assistant Attorneys General
800 Fifth Ave, Suite 2000
Seattle, WA 98104
Attorneys for Appellant

JOHN NELSON, WSBA 45724
Assistant Attorney General
OID No. 91157
800 Fifth Ave, Suite 2000
Seattle, WA 98104
Attorneys for Appellant

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I. INTRODUCTION

Under Gator's Custom Guns' dangerous misinterpretation of article I, section 24 and the Second Amendment, the right of the people, through their elected representatives, to respond to horrific acts of mass violence by ensuring dangerous weapons remain off the streets would be stripped away. Thankfully, our state and federal constitutions are wise enough not to place "military-style armaments which have become primary instruments of mass killing and terrorist attacks in the United States … beyond the reach of our nation's democratic processes." *Bianchi v. Brown*, 111 F. 4th 438, 441 (4th Cir. 2024) (*en banc*).

Court after court has held as much. Indeed, since the State filed its opening brief, this consensus has further solidified, with two additional courts rejecting constitutional challenges to LCM restrictions, and a third rejecting an analogous challenge to an assault weapon restriction. *Vt. Fed'n*

of Sportsmen's Clubs v. Birmingham, 2:23-CV-710, 2024 WL 3466482, at *6, *22 (D. Vt. July 18, 2024); *Ass'n of N.J. Rifle & Pistol Clubs, Inc. v. Platkin*, — F.Supp.3d. —, 2024 WL 3585580, at *21 (D.N.J. July 30, 2024); *see also Bianchi*, 111 F. 4th at 441. Overwhelmingly, Gator's arguments for unlimited access to military-style armaments have lost.

Our Legislature passed SB 5078 after finding it would likely save lives without interfering with lawful self-defense. These findings are abundantly corroborated by evidence in the record. Gator's offered no evidence to the contrary—just its own *ipse dixit* contempt for the Legislature's factual and policy judgments about how best to protect Washingtonians from gun violence. There is a place for these arguments, but it is the ballot box, not this Court. Because the People of Washington are entitled to take action to protect themselves from mass shootings, the superior court's order should be reversed.

II. ARGUMENT

A. SB 5078 Comports with Article I, Section 24

The superior court's order facially invalidating SB 5078 under Washington's constitution was wrong for three reasons. First, LCMs are not "arms," and thus are not covered by section 24. *See* Op. Br. at 24-28.[1] Second, even if they were "arms" in a lay sense, they are not "arms" within the meaning of section 24 because they are not traditionally or commonly used for self-defense. *See id.* at 28-37; *see also Vt. Fed'n of Sportsmen's Clubs*, 2024 WL 3466482, at *6 ("LCMs … are not in common use for self-defense" and thus do not "qualify for presumptive Second Amendment protection[.]"); *Del. State Sportsmen's Ass'n, Inc. v. Del. Dep't of Safety & Homeland Sec.*, 108 F.4th 194, 216 (3d Cir. 2024) (Roth, J., concurring) ("[T]he LCMs

[1] In its opening brief, the State cited extensive case law supporting its arguments. Gator's entirely fails to address this authority. Accordingly, to avoid redundancy, the State largely refrains from re-citing these cases, and instead focuses on subsequently decided cases.

Delaware seeks to regulate are most useful as military weapons and thus are not 'Arms' protected by the Second Amendment.").[2] Third, even if LCMs came within section 24, SB 5078 is a constitutionally reasonable response to the crisis of mass shootings that does not burden the right to self-defense —as every scrap of record evidence confirms. Op. Br. at 37-44.

Gator's responds with a jumble of conclusory arguments and evidence-free assertions that fundamentally fail to carry its burden on any point.

1. LCMs Are Not Arms

Gator's argues that LCMs are arms because they are "integral component[s]" of semiautomatic firearms. Resp. Br. at 10; *see also* Op. Br. at 30, 38. This argument is doubly wrong.

To begin with, it's simply inaccurate, as the State

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[2] In *Delaware State Sportsmen's Association*, the Third Circuit affirmed denial of a preliminary injunction based on plaintiffs' failure to demonstrate irreparable harm. 108 F.4th at 205. Judge Roth, writing separately, would also have affirmed based on plaintiffs' failure to show likely success on the merits.

explained in its opening brief. Op. Br. at 26-28. While semiautomatic weapons may need *a* magazine to fire semiautomatically, it is undisputed that they do not require *large- capacity* magazines. CP 1194, 1306.[3] Anyone who swapped their 17-round magazine for a 10-round magazine would still have a semiautomatic firearm that worked exactly as intended. CP 1321-27; *Vt. Fed'n of Sportsmen's Clubs*, 2024 WL 3466482, at *7. LCMs are thus like bump stocks or laser sights— accessories that modify the capability of firearms, but that are not necessary for their use.

Moreover, even if LCMs were "integral components" of firearms, Gator's never explains why that would automatically make LCMs themselves "arms." For example, steel is an integral component of the vast majority of firearms, but that

[3] As Gator's notes, even without *any* magazine, semiautomatic weapons will still fire as "single[-]shot breechloader[s]." Resp. Br. at 54. Because SB 5078 doesn't regulate ordinary magazines, it does not turn any firearms into single-shot weapons.

does not mean that steel is an arm. Gator's argument is thus missing a critical step.

Gator's also claims, without explanation or support, that "[m]agazines" are "'instruments designed as weapons traditionally or commonly used by law-abiding citizens for the lawful purpose of self-defense[.]'" Resp. Br. at 30 (quoting *City of Seattle v. Evans*, 184 Wn.2d 856, 869, 366 P.3d 906 (2015)); *see also id.* at 38 ("Detachable magazines, as an integral component of a firearm, are unquestionably an instrument designed as a weapon."). Because they don't explain, it's not at all clear how Gator's comes to the conclusion that LCMs themselves are weapons. The State, on the other hand, has definitively established that an LCM, by itself, has virtually no utility in self-defense. LCMs are not arms.

Accordingly, SB 5078 does not implicate section 24.

2. Even if LCMs Were Arms, they Are not the Type of Arms Protected by Section 24

Even if LCMs are arguably "arms," they are not the type of arms protected by article I, section 24, because they are not "weapons traditionally or commonly used" for "self-defense." *Evans*, 184 Wn.2d at 869; Op. Br. at 28-31.

On this point, Gator's response is most significant for what it lacks: they do not seriously argue, and they offer *no* evidence, that LCMs actually facilitate self-defense. *See generally* Resp. Br. at 56-57. This is fatal to their claim because it is *their* burden to show that LCMs are the type of weapon accessory covered by section 24. *Quinn v. State*, 1 Wn.3d 453, 470-71, 526 P.3d 1 (2023) ("The burden to prove a legislative act is unconstitutional rests on the statute's challenger[.]"). Gator's bare assertions that, for example, SB 5078 "impairs the ability of the individual citizen to bear arms in defense of himself and the state," Resp. Br. at 58, unsupported by any evidence, do not cut it. *See Young v. Key Pharm., Inc.*, 112

Wn.2d 216, 225, 770 P.2d 182 (1989) (summary judgment is appropriate where "the plaintiff 'fails to make a showing sufficient to establish the existence of an element essential to that party's case, and on which that party will bear the burden of proof at trial[.]'") (quoting *Celotex Corp. v. Catrett*, 477 U.S. 317, 322 (1986)). Nor does Gator's hypothetical about "multiple assailants," Resp. Br. at 21, substitute for evidence. *See Ocean State Tactical, LLC v. Rhode Island*, 95 F.4th 38, 45 (1st Cir. 2024) (noting that "imagined burdens" don't shed any light on "how a regulation actually burdens the right of armed self-defense").

Not only has Gator's failed to meet their burden, but the undisputed factual record shows they *cannot*. As the State explained, LCMs have basically no utility in self-defense because "individuals almost never fire more than ten rounds in self-defense." Op. Br. at 31. *see also* CP 1510-21 (expert

testimony of Lucy Allen).[4] Rather, they "serve combat functions": killing more people, more quickly. Op. Br. at 29. Court after court has thus concluded that LCMs are not constitutionally protected. *See, e.g.*, *Or. Firearms Fed'n v. Kotek*, 682 F. Supp. 3d 874, 897 (D. Or. 2023)[5]; *Ocean State Tactical*, 95 F.4th at 45; *Capen v. Campbell*, — F. Supp. 3d —, 2023 WL 8851005, at *20 (D. Mass. Dec. 21, 2023); *Hanson v. D.C.*, 671 F. Supp. 3d 1, 14 (D.D.C. 2023); *Vt. Fed'n of Sportsmen's Clubs*, 2024 WL 3466482, at *8.

Despite the State addressing all this in its opening brief, Gator's does not directly challenge any of it. Instead, they try to brush aside reality. First, they claim the State adopts an unduly

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[4] As noted in the State's opening brief, the superior court, *sua sponte*, suggested without explanation that it found

[5] In its introduction, Gator's declares: "the only district court from the Ninth Circuit to reach a determination on the merits found a similar law unconstitutional." Resp. Br. at 9. Not so: the *Oregon Firearms Federation* court is within the Ninth Circuit. (And the district court opinion Gator's alludes to is stayed pending appeal. Op. Br. at 19-20.)

Ms. Allen's methodology unreliable. Op. Br. at 31 n. 5. Since the State filed its brief, the Vermont District Court conducted an *extensive* analysis of Ms. Allen's methodology and "f[ou]nd[] that Allen's testimony is relevant, credible, and methodologically sound." *Vt. Fed'n of Sportsmen's Clubs*, 2024 WL 3466482, at *9, *9-12. narrow definition of "use" to reflect only "incidents in which a firearm is discharged." Resp. Br. at 18. But Gator's is wrong: the State expert's studies include defensive gun uses in which no shots are fired. CP 1511. Moreover, focusing on brandishing only undermines Gator's claim, because when a gun is merely brandished, the LCM's defining feature is not used. Op. Br. at 32; *see also Vt. Fed'n of Sportsmen's Clubs*, 2024 WL 3466482, at *12.

Gator's next argues—again, without any supporting evidence or authority—that "[d]etachable magazines have been used since before the founding of this State, and as long as semiautomatic firearms have been in existence." Resp. Br. at

57. But this is irrelevant to whether LCMs are commonly used for self-defense or whether the Legislature now may constitutionally restrict their sale in response to the modern crisis of mass shootings. What's more, it's wrong, as Commissioner Johnston has spelled out in exacting detail. Ruling Denying Direct Discretionary Review at 23, *Guardian Arms v. State*, Case No. 102436-3 (Wash. Jan. 22, 2024) ("What a typical Washingtonian firearms owner would *not* have had in 1889 was a semiautomatic weapon. *That was simply not a possibility*.") (emphasis added); *id.* at 26 (noting that although some semiautomatic rifles from the first half of the 20th century could be equipped with a detachable box magazine "capable of storing 10 to 15 rounds," those magazines were "sold only to law enforcement"). LCMs "did not become widely available for civilian use until the 1980s," fully 100 years post-statehood. *Nat'l Ass'n for Gun Rights v. Lamont*, 685 F. Supp. 3d 63, 101

(D. Conn. 2023). Gator's historical argument, irrelevant under this Court's precedent, fails even on its own terms.

Gator's reliance on the supposed popularity of LCMs, Resp. Br. at 16-17, 56-57, fares no better. The State comprehensively addressed this argument in its opening brief, but to briefly summarize, *Evans* explicitly hinges protection under section 24 on "use," not ownership or possession. Op. Br. at 35-36. Gator's tries to blur this distinction by likening firearms to seatbelts and implying that guns are "used" even when they are neither brandished nor fired. Resp. Br. 18. But "the Court's choice of the phrase common *use* instead of common *possession* suggests that only instances of 'active employment' of the weapon should count, and perhaps only active employment in self-defense." *Bianchi*, 111 F. 4th at 459. Moreover, if Gator's position is that mere possession of a gun is "use" insofar as gun possession has a deterrent effect, this argument is self-defeating; deterrence doesn't require more than

ten rounds. *See Vt. Fed'n of Sportsmen's Clubs*, 2024 WL 3466482, at *11 (explaining that if relevant use "include[d] situations in which intruders decide not to break into homes due to the threat of a gun, the average number of shots fired would be infinitesimally small—showing with even greater force that LCMs are not in common use for self-defense").

Gator's proposed rule, focused exclusively on ownership numbers, is not the law and defies common sense because it would afford constitutional immunity to any weapon or accessory, no matter how dangerous, as long as enough people bought one. Under Gator's circular theory, constitutional protection would wax and wane with sales receipts. Op. Br. at 36. It defies logic "to hold that arms manufacturers can secure constitutional immunity for their products so long as they distribute a sufficient quantity before legislatures can react," because constitutional rights "cannot be read to expand or

contract based on nothing more than contemporary market trends." *Bianchi*, 111 F. 4th at 460.

On top of the unworkable and illogical flaws in the argument, Gator's offers no competent evidence regarding the supposed commonality of LCMs. Op. Br. at 37. Gator's tries to overcome its reliance on hearsay (which the superior court correctly rejected) by relying on additional hearsay—an unpublished paper by William English. Resp. Br. at 56-57. Beyond being hearsay, the English study is riven with methodological flaws that cast serious doubt on its reliability. *See* Deborah Azrael, et al., *A Critique of Findings on Gun Ownership, Use, and Imagined Use from the 2021 National Firearms Survey: Response to William English*, Duke Law School Public Law & Legal Theory Series No. 2024-50 (June 30, 2024), 78 SMU Law Review (forthcoming 2025), available at https://ssrn.com/abstract=4894282. In the end, all Gator's can stand on is its own say-so.

Finally, Gator's suggests that LCMs ought to be protected under section 24 precisely *because* of their combat abilities to kill lots of people very quickly. That is, Gator's suggests that because one purpose of the right to bear arms is "'protection against governmental or military tyranny,'" they impliedly have a right to carry whatever weapons they deem fit to take up arms for (or possibly against) the State or federal government. Resp. Br. at 56 (quoting *State v. Sieyes*, 168 Wn.2d 276, 291, 225 P.3d 995 (2010)); Resp. Br. at 40.[6] Under Gator's argument, any military weapon—M-16s, M167 Vulcan Air Defense Systems, MQ-1 Predator drones, even nuclear bombs—would be constitutionally protected because they are all potentially useful in military combat. But as both the Washington and federal Supreme Courts have made clear, Gator's limitless reading of the right to bear arms—whether

[6] The *Sieyes* Court ultimately held only that the petitioner failed to adequately raise his constitutional arguments. *Sieyes*, 168 Wn.2d at 296. The Court's discussion of the scope of article I, section 24 and the Second Amendment is thus dicta.

under article I, section 24 or the Second Amendment—is simply wrong.

As this Court has held, section 24 protects only those "weapons traditionally or commonly used by law abiding citizens for the lawful purpose of self-defense." *Evans*, 184 Wn.2d at 869. This does not include LCMs. *Supra* at 7-9.

So too, the federal Supreme Court in *Heller* concluded that the Second Amendment protects only weapons "in common use at the time for lawful purposes like self-defense." 554 U.S. 570, 624 (2008) (quotation omitted). *Heller* repeatedly confirmed that the Second Amendment does not extend to every weapon imaginable, and even explicitly highlighted "weapons that are most useful in military service" as weapons that "may be banned." *Id.* at 627; *see also Bevis v. City of Naperville*, 85 F.4th 1175, 1194 (7th Cir. 2023) ("[T]he Arms protected by the Second Amendment do not include weapons that may be reserved for military use."); *Kolbe v. Hogan*, 849

F.3d 114, 137 (4th Cir. 2017) ("Because … large-capacity magazines are clearly most useful in military service, we are compelled by *Heller* to recognize that those … magazines are not constitutionally protected.").

To the extent Gator's objects that this Court and U.S. Supreme Court's interpretation of article I, section 24 and the Second Amendment, respectively, fits awkwardly with constitutional language regarding "defense of … the state" or a "well-regulated militia," the *Heller* Court already answered this objection, explaining:

> [T]he conception of the militia at the time of the Second Amendment's ratification was the body of all citizens capable of military service, who would bring the sorts of lawful weapons that they possessed at home to militia duty. It may well be true today that a militia, to be as effective as militias in the 18th century, would require sophisticated arms that are highly unusual in society at large. Indeed, it may be true that no amount of small arms could be useful against modern-day bombers and tanks. But the fact that modern developments have limited the degree of fit between the prefatory clause and the protected right cannot change our interpretation of the right.

Heller, 554 U.S. at 627-28.

Ultimately, Gator's bears the burden to show LCMs are "weapons traditionally or commonly used" for "self-defense." *Evans*, 184 Wn.2d at 869. They have failed to introduce any evidence to carry their burden. The superior court's grant of summary judgment should be reversed.

3. Even If LCMs Were Arms under Section 24, SB 5078 Is a Constitutionally Reasonable Regulation That Makes Washingtonians Safer

Gator's makes no serious attempt to show that SB 5078 is constitutionally unreasonable under *State v. Jorgenson*. 179 Wn.2d. 145, 312 P.3d 960 (2013) Instead, it alternately argues that *Jorgenson* is inapplicable (*e.g.*, Resp. Br. at 45-46), or that it must give way to federal standards (*e.g.*, *id.* at 42-43). Neither of these arguments has legs, as the State already explained. Op.

Br. at 40-43.[7]

Gator's also does not introduce any evidence whatsoever to undermine the Legislature's conclusion (or the expert testimony submitted by the State) that SB 5078 will likely save lives without impinging on Washingtonians' exercise of self-defense. Instead, in an attempt to get around the deference owed the Legislature's findings, Gator's launches a misguided attack on the Legislature's capacity to make factual findings about the health effects of restricting LCMs. Gator's urges this Court to ignore the Legislature's findings because "[t]he legislature may not determine what is 'within the purview of a constitutional provision[.]'" Resp. Br. at 34 (quoting *Tacoma v. O'Brien*, 85 Wn.2d 266, 271, 534 P.2d 114 (1975)). But the Legislature did

[7] Gator's also muddles the holding of *Jorgenson* by pointing to language regarding this Court's application of "intermediate scrutiny." Resp. Br. at 46. The language they cite comes from the section of *Jorgenson* applying the Second Amendment (pre-*Bruen*) to the law at issue, using the framework applied by federal courts at the time. *Jorgenson*, 179 Wn.2d at 160-62. This language has no bearing on the section 24 analysis.

no such thing. The Legislature made factual findings that SB 5078 would likely reduce mass-shooting casualties, without limiting Washingtonians' ability to defend themselves. Engrossed Substitute Senate Bill, 5078, 67th Leg., Reg. Sess., § 1 (Wash. 2022). This is precisely the type of "factual determination[]" that "Legislatures must necessarily make … as an incident to the process of making law." *Wash. Off Highway Vehicle All. v. State*, 176 Wn.2d 225, 236, 290 P.3d 954 (2012). And it is precisely this type of legislative determination that "courts ordinarily will not controvert or even question[.]" *Id.*; *see also Jorgenson*, 179 Wn.2d at 149 ("We defer to the legislature's conclusion that when a trial judge finds probable cause to believe a defendant committed a serious offense, public safety justifies temporarily limiting that person's right to possess arms.").

Even without these legislative findings, though, the undisputed evidence clearly demonstrates that laws like SB

5078 save lives. CP 1883-92, 1944-73. As Dr. Lou Klarevas summarized it: "[A] systematic analysis of the empirical data and a forthright review of the relevant literature" demonstrates that "the use of LCMs in mass shootings results in greater carnage, whereas restrictions on LCMs save lives." CP 1973. In short, Gator's unsupported assertion that SB 5078 is "ineffective[]," Resp. Br. at 22, has been proven wrong.

Finally, Gator's suggests this Court should follow the trial court's opinion in *Arnold v. Kotek*, No. 22CV41008 (Harney Cty. Cir. Ct., Or., Nov. 21, 2023), which enjoined Oregon's Ballot Measure 114. Resp. Br. at 27.[8] But *Arnold* — which addresses a different law under a different state constitutional provision—is contrary to the vast weight of precedent. *See supra* at 2, Op. Br. at 18-20 (listing cases).

Further, the trial judge's reasoning was limited to particular features of Oregon's law that are absent here. His

[8] The *Arnold* opinion letter is attached hereto as an Appendix.

analysis turns principally on language in Ballot Measure 114—absent from Washington's SB 5078—that, according to the Court, effectively banned all magazines with "removable baseplates," which is to say, "nearly all magazines." App. 32; *see also* App. 31-32 (concluding that Oregon's statute can also be read to ban most semiautomatic weapons, shotguns, and fixed-magazine rifles). Washington's law is not similarly broad. Indeed, contrary to *Arnold*, Gator's admits that Washington's SB 5078 does not have the effect of banning *any* firearm. CP 1194 (admitting that "each firearm [Gator's] sell[s] that accepts large capacity magazines" can also "accept magazines holding ten or fewer rounds"). And to the extent that any (heretofore unidentified) language in SB 5078 can *arguably* be read to restrict more than just LCMs, that might be grist for an as-applied challenge, but certainly cannot carry Gator's facial-challenge burden of proving that "no set of circumstances exists in which the statute, as currently written, can be constitutionally

applied." *City of Redmond v. Moore*, 151 Wn.2d 664, 669, 91 P.3d 875 (2004).

Gator's tries to spin SB 5078 as an anti-democratic measure in which "the Legislature[] attempt[s] to insert [its] own estimations of what is well-suited for self-defense purposes, rather than [letting] the people of Washington … decide that issue of paramount importance for themselves." Resp. Br. at 19. The irony is palpable. The people's democratically elected representatives have made a decision about what weapons are well-suited for self-defense. They have decided that weapons equipped with LCMs are not. It is Gator's, in its efforts to sell more and more deadly weapon accessories, that is trying to undermine the will of the people. In trying to force "a near absolute" right to sell whatever weapons they want, Gator's would "strike[] a profound blow to the basic obligation of government to ensure the safety of the governed." *Bianchi*, 111 F. 4th at 440. Article I, section 24 "does not

require courts to turn their backs to democratic cries—to pile hopelessness on top of grief" and "disable representative government at the very moment that lethal technologies are proceeding at an accelerated and indeed unprecedented pace." *Id.* at 472. SB 5078 complies with article I, section 24.

B. SB 5078 Comports with the Second Amendment

1. LCMs Are Neither Arms, Nor in Common Use for Self-Defense

Gator's Second Amendment claim fails at the threshold for the same reason their article I, section 24 claim does. The analysis of whether LCMs are "arms" is largely identical, with the caveat that interpreting the federal constitution focuses more specifically on "the understandings of those who ratified it." *N.Y. State Rifle & Pistol Ass'n, Inc. v. Bruen*, 597 U.S. 1, 28, 142 (2022). As the State explained, the historical understanding of the Second Amendment did not encompass accessories like magazines, and, as under section 24, excludes weapons not

commonly used for self-defense. Op. Br. at 45-52. Thus, restrictions on LCMs do not implicate the Second Amendment at all.

Gator's limited response relies on Justice Alito's concurrence in *Caetano v. Massachusetts*, 577 U.S. 411 (2016), in which he (joined only by Justice Thomas) would have held that stun guns are in common use because approximately 200,000 people owned them. Resp. Br. at 70-72. But *Caetano* is irrelevant: the majority opinion is a narrow *per curiam* opinion that rejects three arguments no one makes here. Justice Alito's suggestion in his concurrence that "the relative dangerousness of a weapon is irrelevant" so long as 200,000 or so people own one, *Caetano*, 136 S. Ct. at 1031 (Alito, J., concurring), "failed to garner a Court majority in *Caetano*," *Kolbe*, 849 F.3d at 142. It's not the law.

Adopting a new standard whereby any weapon would be immune from regulation as long as enough people bought one

would also "upend settled law," because the number of stun guns owned by Americans is roughly equal to the number of "legal civilian-owned machine guns in the United States." *Del. State Sportsmen's Ass'n*, 664 F. Supp. 3d at 592. Thus, under Gator's reasoning, "the National Firearms Act's restrictions on machineguns" would be unconstitutional, *id.*, a suggestion the Supreme Court itself called "startling." *Heller*, 554 U.S. at 624.

Gator's has failed to carry its burden to show that LCMs are protected by the Second Amendment.

2. SB 5078 Fits Well Within America's Historical Tradition of Weapons Regulations

Even if LCMs were arms in common use, SB 5078 fits comfortably within more than two centuries of America's historical weapons regulations, as the State detailed in its opening brief. Op. Br. at 53-77. Again, all of this evidence is undisputed. As the Fourth Circuit recently put it, America's history reveals "a strong tradition of regulating those weapons

that were invented for offensive purposes and were ultimately proven to pose exceptional dangers to innocent civilians." *Bianchi*, 111 F. 4th at 471. Time and again, "we see states and localities responding to the calls of their citizens to *do something* about the horrors wrought by excessively dangerous weapons, while preserving the core right of armed self-defense." *Id.*

Courts are effectively unanimous on this point. Each court to address this question has either found that LCM restrictions come within America's historical tradition, or been overruled or stayed. *See* Op. Br. at 74-75 (collecting cases); *Vt. Fed'n of Sportsmen's Clubs*, 2024 WL 3466482, at *22; *Ass'n of N.J. Rifle & Pistol Clubs*, 2024 WL 3585580, at *21. Gator's offers nothing whatsoever to justify a different result here.

The State already addressed most of Gator's arguments in its opening brief. Gator's contends that SB 5078 is inconsistent with history because "laws restricting magazine

capacity" were not enacted until the 20th century. Resp. Br. at 74-77. But not only does this argument run headlong into the Supreme Court's instruction that "analogical reasoning" does not require "a historical twin," *Bruen*, 597 U.S. at 30, it is also nonsensical: of course legislatures didn't legislate about LCMs before they existed or became widespread. Op. Br. at 72-73, 76-77; *see also Vt. Fed'n of Sportsmen's Clubs*, 2024 WL 3466482, at *19-20 (rejecting same argument); *Ass'n of N.J. Rifle & Pistol Clubs*, 2024 WL 3585580, at *23 (same). Eighteenth-century legislatures' inability to conceive of the kind of carnage wrought by LCMs in Newtown or Uvalde doesn't require us to shrug our shoulders in the face of mass shootings.

Gator's points to an early militia law requiring citizens to "have between 20 to 24 shots." Resp. Br. at 76 (citing 1 Stat. 271, 2 Cong. Ch. 33). But "a duty to possess guns in a militia or National Guard setting is distinguishable from a right to bear

arms unconnected to such service." *Lara v. Comm'r Pa. State Police*, 91 F.4th 122, 137 (3d Cir. 2024). Moreover, a requirement that 18th-century citizens have 20 bullets is emphatically *not* a requirement that they be able to fire 20 shots without reloading. To the contrary, 18th-century militiamen had to reload between each shot—a lengthy process even for trained soldiers. *E.g.*, CP 1453, 1617-18.

Finally, Gator's tries to nitpick (some of) the hundreds of historical statutes cited by the State. They claim, for example, that trap gun prohibitions—which criminalized these weapons completely and prohibited their use in defending homes and businesses—are irrelevant because trap guns supposedly "are not wielded in self-defense." Resp. Br. at 79. But as they themselves point out, self-defense includes the right to defend one's property, which is precisely what trap guns were used for. *Id.* at 19-20, 48-49. Gator's suggests that the hundreds of historical laws restricting the carry, sale, or possession of clubs

or knives are not analogous because clubs and knives are not "firearms," Resp. Br. at 79, but the Second Amendment protects arms, not just firearms. Op. Br. at 64. They protest that most historical statutes did not "ban" weapons (Resp. Br. at 77-79, 81)—though many did (Op. Br. at 61, 63, 66, 68, 69)—but ignore that SB 5078 likewise does not ban the carrying or possession of LCMs.

More fundamentally, Gator's effort to highlight the small differences between historical and contemporary statutes simply ignores the Supreme Court's holding that courts look to historical laws to discern historical "principles," not "dead ringer[s]" or "historical twin[s]." *United States v. Rahimi*, 602 U.S. ----, 144 S.Ct. 1889, 1898, (2024). The principle underlying the hundreds of laws cited by the State is clear: the Second Amendment empowers legislatures to respond to citizen calls to restrict the use of dangerous weapons associated with criminal violence. *See, e.g.*, *Bianchi*, 111 F. 4th at 464

("[L]egislatures, since the time of our founding, have responded to the most urgent and visible threats posed by excessively harmful arms with responsive and proportional legislation."); *Bevis*, 85 F.4th at 1200 ("Historical regulations show that at least since the Founding there has been an unbroken tradition of regulating weapons to advance … purposes" like "[p]rotect[ing] … [c]ommunities[.]"); *Ocean State Tactical*, 95 F.4th at 49 ("[O]ur nation's historical tradition recognizes the need to protect against the greater dangers posed by some weapons … as a sufficient justification for firearm regulation.").

Gator's final retort is that some of the restrictions cited by the State might have been considered unconstitutional by some at the time. For example, they claim that two U.S. Department of Justice officials had doubts about the constitutionality of banning machineguns in the 1930s. Resp. Br. at 78. Maybe so. But the Supreme Court has since spoken,

calling the suggestion that machineguns might be protected by the Second Amendment "startling." *Heller*, 554 U.S. at 624.

In the same vein, Gator's cites decisions that it contends show that historical restrictions on Bowie knives and pistols were regarded unfavorably by courts. Resp. Br. at 80. But the cases it cites show the exact opposite.

In *Nunn v. State*, the Georgia Supreme Court struck down Georgia's ban on carrying concealable pocket pistols only insofar as the statute prohibited open carry. 1 Ga. 243, 251 (1846). That is, insofar as the statute went beyond the problem the Georgia legislature sought to address—"the evil practice of carrying weapons secretly"—the court found it went too far. *Id.* at 249 (quotation omitted). The *Nunn* court did not express any disagreement with the Georgia law's restriction on selling pistols or other dangerous weapons. *Id.* at 246; *see also* CP 1377 ("The *Nunn* decision, far from a full-throated defense of limitless gun rights, in fact reiterated states' authority to

prohibit the concealed carrying of deadly weapons in the name of public safety and set no precedent regarding weapon-specific sales bans.").

State v. Reid is equally unhelpful. *Contra* Resp. Br. at 80. There, the Alabama Supreme Court *upheld* the conviction of a sheriff for carrying a concealed pistol. *State v. Reid*, 1 Ala. 612 (1840). As the Court explained, "[t]he right guarant[e]ed to the citizen, is not to bear arms upon all occasions and in all places, but merely 'in defence of himself and the State.'" *Id.* at 613. Beyond that, "the Legislature [has] the authority to adopt such regulations … as may be dictated by the safety of the people and the advancement of public morals." *Id.* So too here.

Contrary to Gator's representation, Resp. Br. at 80, *Cockrum v. State* did not concern a statute prohibiting Bowie knives at all, but rather a statute fixing increased penalties for assaults committed with a Bowie knife. 24 Tex. 394, 402 (1859). And the Court upheld that statute because the Bowie

knife was an "instrument of almost certain death," which the legislature was empowered to regulate. *Id.*

Finally, *Andrews v. State* sharply undermines Gator's argument. *Contra* Resp. Br. at 80. There, the Tennessee Supreme Court actually held that the statute in question was constitutional "so far as it prohibits the citizen 'either publicly or privately to carry a dirk, sword cane, Spanish stiletto, belt or pocket pistol[.]'" 50 Tenn. 165, 186 (1871) (quoting statute). The Court noted that the statute *might* violate the Second Amendment if it prohibited carrying a "revolver" which "may or may not be such a weapon as is adapted to the usual equipment of the soldier[.]" *Id. Andrews* thus stands for the proposition that the Second Amendment countenances restrictions on arms *except* "the arms in the use of which a soldier should be trained," i.e., those most useful in military service. *Id.* at 179. While *Andrews* makes sense in a historical context—recall that militias were formed from men carrying the

weapons they had on hand— *Andrews* ' reasoning was rejected by the Supreme Court in *Heller*. *Supra* at 16-17.

To be sure, *Andrews* also talks about self-defense. But the principles it outlines support laws like SB 5078, even against arguments that LCMs might be useful in self-defense:

> Admitting the right of self-defense in its broadest sense, still on sound principle every good citizen is bound to yield his preference as to the means to be used, to the demands of the public good; and where certain weapons are forbidden to be kept or used by the law of the land, in order to the prevention of crime—a great public end—no man can be permitted to disregard this general end[.]
>
> 50 Tenn. at 188-89.

The *Andrews* comparison gets even worse for Gator's. Because following *Andrews*, "[i]n 1879, [Tennessee] lawmakers prohibited the sale of 'belt or pocket pistols, or revolvers, or any other kind of pistols, except army or navy pistols.'" CP 1376. Two years later, the Tennessee Supreme Court upheld the sales restriction against a Due Process

challenge, characterizing the law "as being made in the exercise of that authority, inherent in every sovereignty, to make all such rules and regulations as are needful to secure and preserve the public order and to protect each individual in the enjoyment of his own rights and privileges[.]" *State v. Burgoyne*, 75 Tenn. 173, 176 (1881) (quoting Cooley on Taxation, 396). Exactly right.[9]

As these cases—and the hundreds of historical statutes cited by the State—make clear, SB 5078 fits well within America's historical tradition of regulating weapons associated with criminal violence.

C. Reassignment on Remand Is Necessary to Ensure Fairness

This case must be reassigned on remand. Op. Br. at 77-83. Gator's disagrees, pointing out that "legal errors alone

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[9] The following year, the Arkansas Supreme Court upheld a similar sales restriction, concluding "[i]t does not abridge the constitutional right of citizens to keep and bear arms for the common defense." *Dabbs v. State*, 39 Ark. 353, 357 (1882).

do not warrant reassignment." Resp. Br. at 86 (quoting *State v. McEnroe*, 181 Wn.2d 375, 388, 333 P.3d 402 (2014)). But Judge Bashor was not merely wrong on the law: he prejudged issues that will bear on discretionary determinations to be made later about the appropriate remedy for Gator's violations—including the legality (and wisdom) of the Attorney General's enforcement of SB 5078 and Gator's good faith in flouting the law. This alone warrants reassignment. But on top of that, he exhibited hostility to the State's positions, and even suggested arguments to Gator's. On remand, the superior court will necessarily exercise significant discretion on issues that Judge Bashor has plainly "prejudged," *McEnroe*, 181 Wn.2d at 387, and on which his "impartiality might reasonably be questioned," *State v. Solis-Diaz*, 187 Wn.2d 535, 540, 387 P.3d 703 (2017). Fairness demands that this case be reassigned.

III. CONCLUSION

The State of Washington respectfully requests that this Court reverse the superior court's grant of summary judgment to Gator's and its denial of summary judgment to the State, and remand to a new superior court judge for further proceedings.

This document contains 6066 words, excluding the parts of the document exempted from the word count by RAP 18.17(b).

RESPECTFULLY SUBMITTED this 11th day of September, 2024.

ROBERT W. FERGUSON, Attorney General

/s/ *Andrew R.W. Hughes, WSBA No. 49515*
Andrew R.W. Hughes, WSBA No. 49515
Attorneys for Appellant State of Washington